



JAMAICA CONSTABULARY FORCE

Policy and Standard Operating Procedures on the Management of Committal Proceedings

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1.0 Introduction

The Committal Proceedings Act 2013 (hereinafter referred to as “the Act” and the Committal Proceedings Rule, 2015 (hereinafter referred to as “the Rules”, which came into operation on January 1, 2016, vide The Jamaica Gazette, Vol. CXXXVIII dated Monday, December 28, 2015, abolished Preliminary Examinations and established Committal Proceedings.

The presumption under Committal Proceedings is that witnesses will not be required to attend court to give evidence for a determination to be made whether an accused should stand trial in the High Court for the offence with which he/she is charged. The statements and exhibits, presented by the prosecutor, will suffice providing there are no deficiencies in the statements or the management of the exhibits, rendering the evidence inadmissible.

Whilst, the benefits to the justice system are quite stark, it places greater obligation on the Jamaica Constabulary Force (JCF) to ensure that cases are properly and thoroughly investigated.

This policy and standard operating procedure on the Management of Committal Proceeding outlined herein must be adopted by every member of the JCF involved in the investigation of indictable offences which may be tried in the High Court.

2.0 Purpose

This document outlines the JCFs policy and Standard Operating Procedures for the investigation of indictable offences to which Committal Proceedings apply and is supplemental to the Crime Reporting and Case Management Policy.

3.0 Scope

This Policy and Standard Operating Procedures applies to every member of the JCF investigating indictable offences or connected to the investigation of these offences, and in particular, the recording of statements of witnesses, where they exist. It does not apply to expert reports, confession statements, questions and answers and dying declarations.

4.0 Abbreviations and Acronyms

IO	Investigating Officer
JCF	Jamaica Constabulary Force
PLO	Prosecution Liaison Officer
PR	Preliminary Report

5.0 Definitions

For the purpose of this policy the following definition shall apply:

- 5.1 **Enforceable Officer:** Shall be the crime officers for the respective division and has responsibility to ensure that all cases submitted to the court are in compliance with the Committal Proceedings Act and Rules.
- 5.2 **Indictable Offence:** Any serious offence that may be tried in the Circuit Court.
- 5.3 **Investigating Officer (IO):** Any member of the JCF (members of the Rural Police not included) who is assigned to conduct investigation into Indictable Offence to which Committal Proceedings apply.
- 5.4 **Preliminary Report:** as defined by the Rules is now the CR15 which should be completed by the investigating officer and approved by the Crime Officer or the Divisional Detective Inspector (DDI) or the Vetting Officer (VO) and submitted to the Prosecutor/Clerk of Court with the case file.
- 5.5 **Vetting Officer:** One who in collaboration with the registry, accesses case files to ensure conformity with laws and that files are submitted in a timely manner to allow for prompt judicial process.

6.0 Responsibilities

The following summarizes key responsibilities:

- 6.1 The ACP i/c Criminal Investigation Branch (CIB) has oversight responsibility to ensure that systems are in place for proper management and investigation of cases to which committal proceedings apply.
- 6.2 Crime Officers have responsibility to ensure that all cases submitted to the Court are in compliance with the Committal Proceedings Act and the Rules, unless an exception under **section 8.1.16** (recording/writing of statements) applies.

7.0 Policy Statements

In acknowledging commitment to its mandate in the justice system, it is the policy of the JCF that:

- 7.1 In line with the overriding objective of the Committal Proceedings Rules, every effort will be made to ensure that Committal Proceedings advance as swiftly as is reasonably possible and consistent with a fair and just process, by fostering strict compliance with the process.

- 7.2** As initiators of investigations and the prosecutorial process, it is an imperative that every effort shall be made to achieve the objectives of the Committal Proceedings Act and the Rules.
- 7.3** In keeping with the law and best practices, all witness statements in committable cases shall comply with the Act, and case files prepared and submitted in a timely manner to permit disclosure to the Court and the defence within the time line specified in the Rules.
- 7.4** The rights of the accused shall be observed while maintaining and improving the JCF's investigative capacity.

8.0 Standard Operating Procedures

The following procedures shall apply:-

8.1 Recording/writing of statements

Where an Indictable Offence has been committed or suspected to have been committed, the following procedures shall be adapted in the recording of statements:

8.1.1 The statement must be recorded whether in writing or by electronic means by a member of the Jamaica Constabulary Force (hereafter referred to as JCF) (District Constables are excluded) in the presence of a Justice of the Peace (hereafter referred to as JP) or in the absence of a JP, a member of the JCF of or above the rank of a Sergeant.

- a) Presence in this context means that the JP or the designated rank must see when the witness is giving the statement but not necessarily be in hearing.
- b) There is however, no objection to the JP or the designated member of the JCF being in hearing during the recording of the statement, providing the witness consents, and it serves a useful purpose in the investigation of the case.
- c) In cases where a designated member of the JCF observes the taking of the statement, all efforts made to first obtain a JP must be documented on the investigator's worksheet and the investigator's statement.

8.1.2 The statement must be read over to the maker.

- 8.1.3 It must be signed by both the maker and recorder in each other's presence and
- a. In the presence of the JP or
 - b. In the presence of the member of the JCF of or above the rank of a Sergeant.
 - c. It is to be noted that it is the same JP or designated member of the JCF who observed the recording of the statement who, must also observe its signing by the maker and the recorder.
- 8.1.4 In circumstances where the recording of the statement is incomplete and there is need for a further statement, the certificates of the maker and recorder must be attached and both parties sign in the presence of each other and the observer.
- 8.1.5 All further statements must also comply with the formalities at **8.1.3** above.
- 8.1.6 A statement must be recorded from the JP or the designated member of the JCF who observed the recording/writing and the signing of the statement (see Appendix 1 of this Policy and SOP for specimen observer statement).
- 8.1.7 The statement must contain a certificate by the maker (see Appendix 2 appended to this Policy and SOP for specimen certificate of the maker and recorder which may be modified in case where a member of the JCF records his own statement to include the investigator's statement).
- 8.1.8 Statements from children should contain the makers' age, and in the case of adults, that the witness has attained the age of 18 years old.
- a) If the maker is under 14 years, the Parish Judge will require a statement/evidence from an Assessor (who must not be a party to the proceedings), such as a Probation Officer, a lawyer, child psychiatrist, psychologist, guidance counsellor or trained counsellor or any other person whom the Parish Judge deems qualified to make an assessment of the competence of the child to give evidence.
 - b) A statement must be obtained from the assessor (See Appendix 3 appended to this Policy and SOP for a specimen statement of the assessor).
- 8.1.9 Statements for Children under the age of fourteen (14) years should have a declaration which states; ***"This statement consisting of (#) page/s signed by me is true to the best of my knowledge and belief."***

- 8.1.10 Statements of witnesses over the age of fourteen (14) years will continue to have the current form of declaration - ***“This statement consisting of (#) page/s signed by me is true to the best of my knowledge and belief and I made it knowing that if it is tendered into evidence I shall be liable to prosecution if I willfully stated in it anything that I know to be false or do not believe to be true.”***
- 8.1.11 Children must still be interviewed with a parent/guardian or any other qualified person.
- 8.1.12 If the maker is illiterate then he makes his mark followed by a certificate that he has made the mark.
- 8.1.13 If the maker suffers from a mental or physical disorder that makes it incapable for him to sign or make his mark, but is capable of affirming, he should be allowed to do so.
- 8.1.14 If the maker is a mentally/physically challenged person, the recorder shall attach a certificate indicating that the statement has been affirmed by the maker and the method used to affirm the statement.
- 8.1.15 All statements must be comprehensively and legibly written/recorded or typed as they will now be read into evidence by the Prosecution, in Court/or the Parish Judge, during the hearing.
- 8.1.16 Notwithstanding the foregoing provision, should for any reason it becomes impossible or impracticable to obtain a JP or a designated member of the JCF to observe the recording of the witness statement, or the witness objects to the recording of the statement in the presence of a JP or a member of the JCF of the designated rank; and it is expedient that the statement be recorded forthwith in the interest of justice, the statement must be recorded and a certificate attached indicating the reason(s) for non-compliance.

8.2 Submission Of Case Files

The following requirements are to be observed in the preparation and subsequent submission of case files:

- 8.2.1 The case file must be vetted by the Divisional Case Registry and approved by the Crime Officer, the DDI or the Vetting Officer.

- 8.2.2 The case file should be substantially completed prior to submission to the court and must consist of a Preliminary Report - CR15 (herein referred to as PR), which may be obtained at the Divisional Case Registry.
- 8.2.3 The PR must be prepared and signed by the investigator and the Crime Officer or the DDI or the Vetting Officer who approved it.
- 8.2.4 As far as is practicable, an original and a typed copy case file must be submitted to the Court.
- 8.2.5 Where the accused is offered station bail, final vetting and tasking of the case file with the PR should be done within 48 hours of being charged.
- 8.2.6 In case where the accused was not granted bail, final vetting and tasking of the case file with the PR must be done within 24 hours of being charged.
- 8.2.7 All case files with the PR shall be submitted to the Prosecutor/Clerk of Court as soon as possible after laying the charge, bearing in mind the rights of the accused, no later than 48 hours prior to the first appearance of the accused. This is to permit vetting, approval and service of the PR by the Prosecutor/Clerk no later than 4pm, the day before the first appearance or thirty (30) minutes on the day set for first appearance.
- 8.2.8 Efforts made to obtain outstanding third party disclosures (forensic certificates, post mortem reports, etc.), as provided for, in the PR, should be documented and placed on file. This includes:
- i. Retaining a copy of the application that was sent to the institution.
 - ii. Obtaining a signed response from that institution with the given date when the exhibit is expected to be ready, as also every subsequent effort made (see Appendix 4 appended to this policy and SOP for specimen exhibit form).

8.3 Court Attendance

- 8.3.1 The investigating officer must be present at the first appearance, the hearing and any mention date set by the Parish Judge, unless otherwise directed by the Court.
- a) If for any reason the investigating officer will be absent during the first appearance, mention date(s) or the hearing, he must inform the Clerk and or the Prosecution Liaison Officer (PLO) as soon as he becomes aware of his unavailability and provide them with all relevant briefing/update on the case.

- b) Nothing in this policy changes the role of the PLO but adds that the PLO shall be present at the first appearance, mention dates and the hearing set by the Parish Judge.

- 8.3.2 At the hearing where Committal Proceedings takes place, the IO must secure and make available to the Court, all exhibits that are required to be tendered by the Prosecution. In cases where exhibits cannot be conveniently produced in Court, the IO shall assist the Court, if required, to locate them for inspection.
- 8.3.3 Unless otherwise directed by the Court, upon conclusion of the Committal Proceedings, every non-documentary exhibit that was tendered must be secured by the investigating officer and stored in a manner consistent with Force Policy treating with exhibits.
- 8.3.4 If a prima facie case was made out against the accused at the hearing, it is the duty of the investigating officer to follow through with the case to the Circuit Court until the matter is disposed of. This includes conducting further investigation that may be required.

8.4 Witness Management

Witness Management Systems enhance the support given to witnesses to enable them to give evidence in court. The purpose of Witness Management is to perform specialized contact work, coordinating the appearance of witnesses and making travel arrangements, if necessary, during court proceedings.

The presumption under Committal Proceedings is that witnesses will not be required to attend Court unless the accused is committed to stand trial in the High Court, as only the statements will be relied on. Whilst this will provide greater protection of witnesses, particularly those that are vulnerable and improve efficiencies in the Justice System, concomitantly, it demands greater levels of witness management to include the management of expectations, to enable them to attend court and give evidence for the Crown. In this regard, the following measures must be observed:

- 8.4.1 A witness shall not be told that he will not be required to give oral testimony during the Committal Proceedings, as, if the Court desires, he may be required to attend court and give oral testimony and may be subjected to cross examination.

8.4.2 The investigator shall provide assistance to the witness by making travel arrangements if required, and keep witnesses informed on the progress and outcome of the case at each stage of the proceedings. This include arrest, charge, first appearance of the accused, mention date, the hearing and the outcome of the Committal Proceedings as well as the date set for first appearance in the High Court, if the accused is committed to trial. This may be achieved by telephone, email, personal contact or any other means of effective communication. Each contact must be evidenced on the investigator's worksheet.

8.4.3 In cases where the witness is on the Witness Protection Programme, this information should be provided through the Justice Support Unit.

9.0 Legislative Authority/Guiding Principles

This policy is in keeping with provisions contained in the Constitution of Jamaica and the following legislations and guiding principles:

- i. The Committal Proceedings Act 2013
- ii. The Committal Proceedings Rules 2015
- iii. Crime Reporting and Case Management Policy

10.0 Records and Related Forms

- 10.1** Specimen Statement of the Observer
- 10.2** Certificate of maker and Recorder
- 10.3** Specimen Statement of the Assessor
- 10.4** Application for Exhibit Request Form
- 10.5** Legislation and Rules

11.0 Roles and Function

- 11.1** Divisional Officers
- 11.2** Investigating Officer
- 11.3** PLO

Appendix 1

SPECIMEN STATEMENT OF THE OBSERVER

Statement of Justice of the Peace or a member of the JCF of or above the rank of a Sergeant pursuant to Section 6 (2) of the Committal Proceedings Act, 2013.

This statement consisting of one (1) page signed by me is true to the best of my knowledge and belief and I make it knowing that if it is tendered in evidence I shall be liable to prosecution if I have wilfully stated in it anything which I know to be false or do not believe to be true.

.....states,

Tick the appropriate box

I am a Justice of the Peace for the parish of.....with official seal number

.....I may be contacted at telephone No.Email.....

I am a member of the Jamaica Constabulary Force at the rank of a /an.....

stationed at.....

I may be contacted at telephone No.Email.....

On the day of in the year about

..... am/pm I attended

for the purpose of observing the recording of a statement from a person who identified

himself / herself as

This statement was recorded by

a member of the Jamaica Constabulary Force in my presence. Upon completion of the recording

of the statement, it was read over to the maker and both the maker and the recorder signed in the

presence of each other and in my presence.

Sign:

JP affixes Seal

Date:

Appendix 2

SPECIMEN CERTIFICATE OF THE MAKER AND RECORDER

MAKER'S CERTIFICATE

On Saturday August 8, 2015 about 1:00pm I gave this statement to Constable John Doe at the Hunts Bay Police Station in the presence of Justice of the Peace Donald Brown. It was read over to me by the recorder and I signed it (*or made a mark*) in the presence of the recorder and Justice of the Peace Donald Brown to be true and correct.

▶ *Witness Signature:*

▶ *Date:*

TAKER'S CERTIFICATE

Recorded by me, John Doe, a member of the Jamaica Constabulary Force on Saturday August 8, 2015 about 1:00pm at the Hunts Bay Police Station in the presence of Justice of the Peace Donald Brown. The statement was read over to the maker by me and we signed it (*The maker who was unable to sign made his mark*) in the presence of each other and Justice of the Peace Donald Brown.

▶ *Recorder's signature*

▶ *Date*

TAKER'S CERTIFICATE (*Physically challenged witness*)

Recorded by me John Doe, a member of the Jamaica Constabulary Force on Saturday August 8, 2015 about 1:00pm at the Hunts Bay Police Station in the presence of Justice of the Peace Donald Brown. The statement was read over to the maker Samuel Brown who suffers from a speech impediment who acknowledged it by nodding his head in affirmation, as being true and correct, in the presence of Justice of the Peace Donald Brown.

▶ *Recorder's signature:*

▶ *Date:*

Appendix 3

SPECIMEN STATEMENT OF THE ASSESSOR

Statement of “Assessor” of Child Witness under the age of 14 years old pursuant to Section 6 (3)(b) of the Committal Proceedings Act, 2013.

This statement consisting of one (1) page signed by me is true to the best of my knowledge and belief and I make it knowing that if it is tendered in evidence I shall be liable to prosecution if I have wilfully stated in it anything which I know to be false or do not believe to be true.

..... states,

Tick the appropriate box

I am a Child Psychiatrist Probation Officer Psychologist Trained Counselor /Attorney-at-Law
/Guidance Counselor Other

(State address /qualification/ experience etc.).....
.....
.....
.....
.....

I am not a party to the proceedings and on the day of in the year
..... I made an assessment of (***name of child witness***).....

for the purpose of determining his/her competence to give evidence.

I am of the Opinion that this child:

Understands the nature of an oath does not understand the nature of an oath but possesses
sufficient intelligence to justify the reception of the evidence and understands the duty of telling
the truth. Does not understand the nature of an oath nor possesses sufficient intelligence to justify
the reception of the evidence or understands the duty of telling the truth.

Sign:

Date:

Appendix 4

SPECIMEN APPLICATION FOR EXHIBIT REQUEST

Constabulary Station

Application is hereby made for / or an update on:

- ☐ Ballistic Certificate
- ☐ Forensic Certificate
- ☐ Viewers CD
- ☐ CFCU
- ☐ Medical certificate
- ☐ Post Mortem
- ☐ Copy file
- ☐ Questioned Documents
- ☐ Other _____

This application is for Court purposes in case _____ for the offence of
_____ committed on _____ at -

Signed _____

Date _____

The expected date for pick up will be on _____

Signed _____

Date _____

Appendix 5

1. OVERVIEW OF THE LEGISLATION & RULES

Legislation: The Committal Proceedings Act 2013

Rules: The Committal Proceedings Rules 2015

The Act and Rules need to be read in conjunction.

2. The purpose of the Act is to **abolish** preliminary examinations and replace them with committal proceedings. Committal proceedings will be conducted by a Resident Magistrate sitting as an Examining Justice [Act: Section 2(1)]. It establishes many of the concepts referred to in the Rules.
3. The new procedure is very different to the old one under Preliminary Examinations and the rules impose new and stringent time limits.
4. Committal Proceedings only apply to **indictable offences**. [Act: Section 3(1)].
5. The following must be observed for the statement to be admissible under Committal Proceedings (Section 6).
 - i. The statement must be recorded by a member of the JCF
 - a. In the presence of a JP or in the absence of a JP;
 - b. a Senior Member of the JCF of or above the rank of Sergeant.
 - ii. It must be read over to the Maker
 - iii. Must be signed by Maker and Recorder in each other's presence AND
 - c. In the presence of a JP or
 - d. A Senior Member of the JCF of or above the rank of a sergeant.
 - iv. Statement must contain a declaration by the Maker
 - v. Statement should contain the Makers Age, if under 18 years old.
 - vi. If the Maker is under 14 Years, then the RM will require a statement / evidence from the Assessor (RM deem qualified to make an assessment of a Child)
 - vii. If the maker is illiterate then the maker makes his mark followed by a declaration that he has made the mark.
 - viii. If the maker suffers from a mental or physical disorder that makes him incapable for him to sign or make his mark, but is capable of affirming, he should be allowed to do so.
 - ix. Having received the statement from the mentally / physically challenged. The recorder shall attach a declaration indicating that the statement has been affirmed by the maker and the method used to affirm the statement
6. Two types of Committal Proceedings.
 - (i) Without oral evidence (on statements) [Act: Section 3]
 - (ii) With oral evidence [Act: Section 4 – re: witnesses other than the accused]
[Act: Section 5 – right of accused to give evidence or tender written statement or make an unsworn statement or remain silent]